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The court believes that there has been a showing as to why the fact discovery might be needed. In particular, it appears that plaintiff was dosed with 8 times the amount of energy that is called for (if this is a one zone procedure). That information might well be important here. The court understands the moving party's claim that this is irrelevant, but that is not clear. The court needs specific information tying the discovery sought with the motion as brought.

But the court remains concerned. First, the court sees no declaration from plaintiff's expert that this information is needed in order for plaintiff's expert to render a contrary opinion. That is what the court would have expected.

Second, plaintiff does not explain diligence. The only explanation given is that the deposition dates were the earliest available given the written discovery and plaintiff's trial calendar. The court is looking for more here. As defendants suggest, it should have come as no shock that plaintiff needed a PMK deposition as well as Dr. Alessi's deposition. Even assuming that the need was not pointed until the motion was filed, the court wants to know what steps plaintiff took to get the depositions on calendar. If the fault lies with the defense, that will be diligence, and the court would be inclined to grant the motion. But if plaintiff just did not get around to it, the court is more concerned. Plaintiff is seeking what is essentially a two month continuance of the MSJ. That is a lot.

Having said all of that, the court would like to know what, if any, prejudice defendants will suffer from the requested continuance

assuming that the trial date holds and that the motion is heard. The court will also ask the status of the written discovery. The court's order was made on July 17, 2026. If discovery was not forthcoming due to the protective order and if the order was not signed by the defendants until last week, that seems to be a strong argument in favor of a continuance, even though it is not the responding party that is moving for summary judgment.

The court agrees with plaintiff that St Mary provides that an expert giving a declaration can be deposed outside of the 2034 process as it relates to the declaration. But the court never doubted that. The issue is why that is necessary. Usually, for summary judgment, the motion is defeated not by undermining the moving party's expert based on a deposition, but rather by showing that the declaration on its face is insufficient or by way of a counter-declaration from another expert. The utility of deposing the declarant seems small. St. Mary noted that in some circumstances, such a deposition is proper. In that case, the situation was a bit reversed from the situation here. There, the defendants filed a motion for summary judgment. They relied on an expert declaration from a doctor who opined there was no malpractice or causation. Plaintiffs opposed the motion and submitted the declaration of their own expert to establish a triable issue of fact. He said that defendants were negligent and their negligence caused the injury. The defendants sought to depose plaintiff's expert. The trial court denied the motion because there had been no expert designation. The Court of Appeal issued a peremptory writ. As stated above, the appellate court concluded that section 2034 does not preclude a deposition of an expert who submits an expert declaration to the extent of the declaration. But that case is not this case. In that case, critically, it was the moving party that sought the deposition of the opposing party's expert. Why is that important? Because having the moving party's expert attempt to undermine the opposing party's expert would most likely only result in the court concluding that there is a triable issue of fact as to the dueling experts. The only way to attack the opposition expert would be to undermine that expert through a deposition. Here, in contrast, plaintiff has no such burden. The plaintiff can attempt to so undermine the defense expert that the court will simply strike the declaration. But that seems an odd choice and a steep

path. The more obvious route is for plaintiff to submit a declaration that rebuts defendants' expert. It could be possible that no such declaration is possible without deposing defendants' expert; but the court has seen no showing of that here.

The court also notes that plaintiff cites to and relies on a Superior Court opinion out of Orange County. Such decisions are not citable authority and the court has disregarded that part of the application. Counsel ought to know better than that.

The bottom line is that the motion is CONTINUED to the hearing date. The court will move the hearing date a short time to accommodate the scheduling conflict. In the opposition, plaintiff can make the 473c(h) showing by a specific discussion of the evidence that plaintiff wants to obtain, how it is expected to be used to defeat the motion, and an explanation as to why it was not timely obtained (that is, plaintiff's diligence). If that showing is adequately made, the court will continue the MSJ to allow the discovery.